Alok Kumar Mohapatra vs State Govt. Nct Of Delhi on 9 December, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

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* IN THE HIGH COURT
\+ BAIL APPLN. 3464/2025
ALOK KUMAR MOHAPATRA
Through: Ms

versus

STATE GOVT. NCT OF DELHI ....
Through: Mr. Hemant Mehla, APP.
SI Ankit Yadav, Cyber Polic
Rohini Delhi.
SI Ankit Yadav, P.S. Cyber
Station Rohini, Delhi.
CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
ORDER

% 09.12.2025

1. The present bail application under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 seeks pre-arrest bail in FIR No. 0034/2025 registered under Section 420 of the Indian Penal Code, 18601 at P.S. Cyber Police Station Rohini.

2. The FIR was registered on 12th March, 2025, on the complaint of Gaurav Kumar, who alleged that he was induced through a Telegram group to invest in Bitcoin and was cheated of a sum of INR 7,08,000/-. He alleges that after transferring the amount on the assurance of high returns, the investment platform became inoperative when he attempted to withdraw his money, prompting him to lodge an online cyber-fraud complaint. During "IPC"

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/12/2025 at 20:46:43 investigation, analysis of the money trail revealed that an amount of INR 2,98,000/- out of the cheated sum stood credited to a bank account in the name of the Applicant, Alok Kumar Mohapatra. The Applicant was served notices under Section 35(3) BNSS and joined investigation at Bhadrak, Odisha, where he stated that he had shared his bank-account credentials with one "Sisir", whom he had allegedly met on Telegram, for a 2% commission. According to the Applicant, Sisir operated the

account by using an SMS- forwarding application installed on the Applicant's phone, which he now claims to have lost. The Applicant has not produced any mobile chats, call records, contact details or other digital trail of this individual. There are nine other NCRP complaints linked to the same bank account, with transactions exceeding INR 20 lakhs within a span of two days, followed by near-immediate withdrawals. The present application for anticipatory bail has been filed in this backdrop.

3. By order dated 10th September, 2025, this Court granted interim protection to the Applicant and directed him to join and cooperate with the investigation. It is not in dispute that the Applicant thereafter joined investigation on 13th September, 2025.

4. Mr. Hemant Mehla, APP for the State, submits that although the Applicant attributes the transactions in question to one "Sisir", he has not furnished any contact number, address, social-media handle, or device-based data to support this version. He only states that Sisir is a person residing "somewhere near the Bhadrak-Keonjhar border" in Odisha. Mr. Mehla further points out that this case does not involve a solitary transaction or an isolated FIR. Nine NCRP complaints stand mapped to the same bank account, and credits of more than INR 20 lakhs within two days, followed This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/12/2025 at 20:46:43 by same-day or immediate withdrawals, present a pattern that, at this stage, is consistent with the modus operandi of cyber-fraud networks, where victims are lured through online investment groups and the cheated proceeds are routed through accounts projected as "dummy" or "rented" accounts. In such circumstances, Mr. Mehla states that prosecution must be given an opportunity for custodial interrogation.

5. At this stage, it would be inappropriate for this Court to record any conclusive finding on the correctness of the Applicant's explanation regarding "Sisir". Whether that explanation is plausible, partially correct, or a device to distance himself from the transactions, is a matter for investigation and, in due course, for trial. What does prima facie emerge is that the Applicant's bank account is a common node appearing in multiple similar complaints, with clustered credits of large amounts and swift withdrawals over a very short period. The money trail, therefore, calls for a comprehensive and unhindered investigation to ascertain the full chain of events, the flow of funds, the devices used, and the identity of all persons involved.

6. The Supreme Court has repeatedly held that economic offences stand on a different footing from ordinary crimes. In P. Chidambaram v. Directorate of Enforcement2 and Nimmagadda Prasad v. CBI3, the Court has observed that economic offences often involve deep-rooted conspiracies, complex layering of transactions, and substantial loss to the public or to the financial system, and must therefore be viewed seriously. It has also been emphasised that in such matters, effective investigation, including custodial CRIMINAL APPEAL NO. 1340 of 2019 CRIMINAL APPEAL NO. 728 of 2013 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/12/2025 at 20:46:43 or unimpeded interrogation where warranted, may be essential to unearth the full contours of the offence and trace the proceeds of crime. Though this case arose in the context of large-ticket financial and corruption offences, the underlying rationale applies with equal force to organised cyber-fraud. Technology-driven frauds frequently involve multiple devices, anonymised communication channels, cryptocurrency or pseudo-anonymous payment rails, and layered transfers through "mule" or "dummy" accounts.

7. This Court in Mohit v. State of NCT of Delhi4 while dealing with allegations of digital fraud, highlighted the increasing complexity of such offences as follows:

> "12. It is pertinent to note that the present case pertains to serious allegations of digital frauds where complex technological mechanisms were employed to defraud gullible victims. Such cases, by their very nature, involve intricate methods and multiple communication devices and are used to mislead unsuspecting victims.
>
> 13. Such crimes are on the rise and the same tend to be significantly harder to crack due to the boon of technology that is effectively misused by crooks to wreak havoc and evade the law enforcement. The task of the Investigating Agency seems arduous and they need to be given a fair play in the joints to investigate the matter in the manner they deem appropriate. The matter requires thorough investigation which ought not to be curtailed by passing an order granting pre-arrest bail."

8. The investigation is still underway. The Applicant's bank account is not only directly linked to the complainant's funds but also appears repeatedly in other similar complaints, with significant credits and almost immediate withdrawals within a span of two days. The explanation that the account was merely "rented out" to an unidentified third party, unsupported by any digital trace or minimal identifying particulars, itself requires careful This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 10/12/2025 at 20:46:43 probing. At this stage, grant of pre-arrest bail is likely to impede the ability of the Investigating Agency to authenticate and reconstruct the digital trail across devices and platforms, trace and freeze further downstream movement of funds, and identify and apprehend other participants in the alleged network.

9. Having regard to the nature of the allegations, the recurring appearance of the Applicant's account in multiple similar complaints over a short time-frame, the pattern of transactions, and the stage of investigation, this Court is not persuaded that the exceptional discretion of granting pre-arrest bail ought to be exercised in favour of the Applicant.

10. The bail application is dismissed.

11. It is clarified that any observations made in the present order are only for the purpose of deciding the present application and the Court has not commented on the merits of the case.

SANJEEV NARULA, J DECEMBER 9, 2025 as This is a digitally signed order.

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